

		Compliance with Subpoena (Leeper Decl.), ¶ 2, Exh. B.) The subpoena included a demand for Plaintiff's "complete medical records, billing records, and radiology images from the first date of treatment of the present. . . ." (<i>Ibid.</i>) When Defendant did not receive the documents in a timely manner, Defendant's Counsel reminded Rabbani that Defendant had paid the fees to obtain the documents and inquired when the documents would be produced. (See <i>id.</i>, ¶ 3, Exh. A.) However, despite the fact that Rabbani was served with the subpoena and never objected to it nor filed a motion to quash, Rabbani did not produce any of the medical records to Defendant. (See <i>id.</i>, ¶¶ 4-6.) Defendant explained that these records are relevant because Plaintiff alleges multiple injuries and sought treatment from Rabbani. (See <i>id.</i>, ¶ 2.) (fn.1) (fn.1) Here, Defendant did the minimum to set forth specific facts showing good cause justifying the discovery sought, but just barely. The court encourages Defendant, in the future, to be more thorough in meeting the requirements of the Civil Procedure Code. Rabbani has failed to file an opposition or respond to the motion. Thus, Rabbani has waived any arguments regarding the motion. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue]; see also <i>Wright v. Fireman's Fund Ins. Companies</i> (1992) 11 Cal.App.4th 998, 1011 ["it is clear that a defendant may waive the right to raise an issue on appeal by failing to raise the issue in the pleadings or in opposition to a . . . motion"].) Therefore, the court will grant the motion. Defendant shall give notice of this ruling.
3	Lobaton vs. Swartz & Smidt Associates	<u>Motion to Set Aside Default</u>

	30-2024-01371405	Defendant Bruce A. Wilson’s Motion to Vacate Entry of Default as to Bruce A. Wilson, Per CCP § 473(b) is taken OFF CALENDAR as moot. <u>Pending Motion</u> Defendant Bruce A. Wilson moves to vacating the default entered against him with respect to the original Complaint. (See ROA #32.) <u>Procedural Posture</u> On January 9, 2024, Plaintiffs Michael Lobaton and Evelyn Lobaton filed their original Complaint (Complaint) asserting 8 causes of action against the 4 separate defendants, including Defendant Bruce A. Wilson (Defendant Wilson). (See ROA #2.) On February 26, 2024, Defendant Bruce A. Wilson was served with the Summons and Complaint by substituted service. (See ROA #24.) On April 26, 2024, Plaintiffs requested and the court entered default against Defendant Wilson on the Complaint. (See ROA #32.) On October 9, 2024, Defendant Wilson filed this motion seeking to vacate the entry of default against him. (See ROA #92.) On February 11, 2025, after the filing of this motion, Plaintiffs filed the Verified First Amended Complaint (FAC) and served it upon, among others, Defendant Wilson. (See ROA #169.) While the FAC named the same 4 defendants, it included only 5 causes of action. (See <i>ibid.</i>) On March 10, 2025, Defendant Wilson filed an answer to the FAC. (See ROA #171.) As the Court of Appeal has explained: “It is settled by a long line of decisions that where, after the default of a defendant has been entered, a complaint is amended in matter of substance as distinguished from mere matter of form, the amendment opens the default, and unless the amended pleading be served on the defaulting defendant, no judgment can properly be entered on the default. [Citations.] The reason for this rule is plain. A defendant is
--	--------------------------------	---

		entitled to opportunity to be heard upon the allegations of the complaint on which judgment is sought against him. His default on the original complaint is limited in its effect to that complaint, and if by amendment a matter of substance is added, he should be given the opportunity to contest the same before any judgment is given against him on account thereof. The law, therefore, requires that the amended pleading shall be served on all the adverse parties, including defaulting defendants.” (<i>Ostling v. Loring</i> (1994) 27 Cal.App.4th 1731, 1743, quoting <i>Cole v. Roebeling Construction Co.</i> (1909) 156 Cal. 443, 446; see also <i>Ford v. Superior Court</i> (1973) 34 Cal.App.3d 338, 343 [“There is but one complaint in a civil action and, insofar as the rule that an amendment of substance opens a default is concerned, it matters not whether the amendment is accomplished by an amended complaint or an amendment to the complaint.”], citation omitted.) Here, the FAC is substantively different from the Complaint as it includes 3 fewer causes of action but has more pages of allegations and exhibits. Thus, Defendant Wilson was entitled to respond to the FAC, which he has done by filing an answer. “The filing of [an] amended complaint render[s] [a] demurrer moot since ‘an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.’” (<i>Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.</i> (2004) 122 Cal.App.4th 1049, 1054, quoting <i>Foreman & Clark Corp. v. Fallon</i> (1971) 3 Cal.3d 875, 884.) Similarly, the FAC in this case supersedes the Complaint, which ceases to perform any function. This renders the instant motion moot because Defendant’s default as to the Complaint has no effect. Therefore, the motion is moot and the court will take it off calendar. (fn.1) (fn.1) In any case, Defendant Wilson has shown that default was taken against him due to his own “mistake, inadvertence, surprise, or excusable neglect.” (See Civ. Proc. Code § 473, subd. (b).)
--	--	--

		In fact, Defendant Wilson may be entitled to mandatory relief because he was an attorney representing himself at the time of the default. (See <i>ibid.</i>) "Because the law strongly favors trial and disposition on the merits, any doubts in applying section 473 must be resolved in favor of the party seeking relief from default." (<i>Elston v. City of Turlock</i> (1985) 38 Cal.3d 227, 233, superseded by statute, on other grounds, as discussed in <i>Tackett v. City of Huntington Beach</i> (1994) 22 Cal.App.4th 60, 64.) Thus, even if Plaintiffs had not filed an amended complaint, the court would have been required to grant the motion. Defendant Wilson shall give notice of this ruling.
4	Nepi vs. Harley-Davidson, Inc. 30-2023-01335491	<u>Motion to Compel Discovery</u> Defendant Harley-Davidson Motor Company, Inc.'s Motion to Compel Deposition of Plaintiff Garrett A. Nepi and Request for Sanctions is CONTINUED to April 21, 2025 at 9:00 a.m. in Department N15. <u>Pending Motion</u> Defendant Harley-Davidson Motor Company, Inc. moves to compel the deposition of Plaintiff Garrett A. Nepi. <u>Procedural Posture</u> While Plaintiff has not filed an opposition to this motion, he has filed a Motion for Protective Order, which seeks both a protective order relating to and to quash service of "the deposition notice defectively served by Defendants." (See ROA #117 at p. 1.) Although it is not clear, it appears that the Motion for Protective Order relates to Defendant's Notice of Taking Deposition of Plaintiff and Production of Documents that is at the heart of this motion. Therefore, it may be better for the two motions to be heard together. The court will continue this motion so that it may be heard with the Motion for Protective Order. The court clerk shall give notice of this ruling.